

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 16, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 16, 2023, a complaint was submitted to this Agency by Ms. A.A.A. (hereinafter, the complainant) against CLUB DE FÚTBOL INTERCITY, S.A.D. (hereinafter, the respondent) for not having duly addressed her right of access.

The complainant received a WhatsApp message from a former employee of the respondent containing information about the creation of another different club. She states that the sender of the message was not authorized to use her data for that purpose and that her data was obtained from the files of the respondent.

Therefore, on April 12, 2023, the complainant sent an email to the respondent requesting to know to whom her data had been transferred and to know the identity of the employee who had accessed her data.

On April 13, 2023, the respondent replied asking her to provide a copy of her ID.

After the complainant sent her ID, she has not received any response.

Along with the complaint, the exchanged emails have been provided.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent has indicated, regarding the present procedure, that they received the request and that they replied asking for a copy of the ID in order to link the request with the data subject.

Furthermore, the complainant states that "(...) We have not responded to the complainant in a timely manner."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on November 16, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any allegations they deemed appropriate.

The complainant reiterates what has already been stated previously.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant so that, within ten working days, she can make any allegations she considers appropriate, not making any allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the...

C/ Jorge Juan, 6

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28001 – Madrid

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3/7

In the present procedure, the claim was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response.

The result of this forwarding did not satisfy the claims of the claimant. Consequently, on November 16, 2023, for the purposes outlined in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing initiates the present procedure regarding the lack of attention to a request for the exercise of rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, which states:

“When the procedure exclusively concerns the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including “ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

C/ Jorge Juan, 6

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28001 – Madrid

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

C/ Jorge Juan, 6

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In this case, the claiming party has requested access to their personal data from the respondent, and in response to this request, the respondent has required the claiming party to provide a copy of their ID in order to proceed with granting the requested access.

On this particular matter, it should be noted that the Guidelines 01/2022 on the rights of data subjects — Right of access Version 2.0 adopted on 01/18/2022, state regarding the identification of the requesting person that the data controller must respond to requests from data subjects exercising their individual rights, unless they can demonstrate, through justification in accordance with the principle of proactive responsibility (Article 5.2), that they are unable to identify the data subject (Article 11). And specifically regarding the assessment of proportionality in relation to the identification of the requester, the aforementioned Guidelines provide the following:

"69 As previously indicated, if the data controller has reasonable grounds to doubt the identity of the requesting person, they may request additional information to confirm the identity of the data subject. However, the data controller must ensure at the same time that they do not collect more personal data than necessary to allow the identification of the requesting person. Therefore, the data controller will

carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from an improper disclosure. When assessing proportionality, it should be remembered to avoid excessive data collection while ensuring an adequate level of security in processing.

70. The data controller must apply an authentication procedure (verification of the identity of the data subject) to ensure the identity of the individuals requesting access to their data, and guarantee the security of processing throughout the entire process of handling a request for access in accordance with Article 32, including, for example, a secure channel for data subjects to provide additional information. The method used for authentication must be relevant, appropriate, proportionate, and respect the principle of data minimization. If the data controller imposes burdensome measures aimed at identifying the data subject, they must adequately justify it and ensure compliance with all fundamental principles, including data minimization and the obligation to facilitate the exercise of the rights of data subjects (Article 12, paragraph 2, of the GDPR).

(...)

73. It is important to emphasize that the use of a copy of an identity document as part of the authentication process creates a risk to the security of personal data and may lead to unauthorized or unlawful processing, and therefore should be considered inadequate, unless it is strictly necessary, appropriate, and compliant with national law. In such cases, data controllers must have systems in place that ensure an adequate level of security to mitigate the greater risks to the rights and freedoms of the data subject when receiving such data. It is also important to consider that identification through an identity document does not necessarily assist in the online context (by

C/ Jorge Juan, 6

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6/7

for example, using pseudonyms) if the interested party cannot provide any other evidence, such as other characteristics that match the user account.”

The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties must issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of the request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be sent to the claimant informing them of the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been violated and to urge CLUB DE FÚTBOL INTERCITY, S.A.D. with NIF A03848256, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to CLUB DE FÚTBOL INTERCITY, S.A.D.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

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7/7

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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